

Amit Aggarwal & Ors vs State (Nct) Of Delhi & Anr on 24 December, 2020

Author: Anu Malhotra

Bench: Anu Malhotra

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.M.C. 2550/2020 & CRL.M.A. 18037/2020
AMIT AGGARWAL & ORS.

..... Petitioners

Through: Mohd. Sajid, Mr. VK Tiwari,

versus

STATE (NCT) OF DELHI & ANR.

.....

Through: Ms. Meenakshi Dahiya, APP
State
Mr. Rahul Kr. Jha, Adv. f
R-2.

CORAM:

HON'BLE MS. JUSTICE ANU MALHOTRA
ORDER

% 24.12.2020 (through video conferencing) CRL.M.A. 18037/2020 (Exemption) Exemption allowed, subject to just exceptions.

Vide the present petition, the petitioners seek quashing of the FIR No.478/2016, PS Safdarjung Enclave, under Sections 498A/406/34 of the Indian Penal Code, 1860 submitting inter alia to the effect that a settlement has since been arrived at between the parties on 17.08.2019 at the Counselling Cell, Family Court, PHC, New Delhi and that pursuant thereto the marriage between the petitioner No.1 and the respondent No.2 has also been dissolved vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 vide decree dated 24.01.2020 in HMA 122/2020 of the Court of the Principal Judge, Family CRL.M.C. 2550/2020 page no.1 of 5 Courts, South Saket, Delhi and all claims of the respondent no.2 pursuant to the said settlement have since been settled and the total settled sum of Rs.6 lacs has been received now by her and that no useful purpose would be served by the continuation of the said FIR.

The Investigating Officer of the case is present and has identified the petitioners present in Court today through Video Conferencing as being the accused arrayed in the FIR in question and has also identified the respondent No.2 present in the Court today through Video Conferencing as being the complainant thereof.

The respondent No.2 in her deposition on oath in replies to specific Court queries has affirmed the factum of a settlement arrived at between her and the petitioners and the factum of the dissolution of the marriage between her and the petitioner no.1 as aforementioned and the aspect of the receipt

of the total settled sum of Rs.6 lacs from the petitioners and she has also stated that there are no claims of hers left against the petitioners now. The respondent no.2 has also stated that she has studied upto Standard 10th and has understood the implications of the statement made by her that she has made voluntarily.

On behalf of the State, there is no opposition to the prayer made by the petitioners seeking quashing of the FIR in question in view of the settlement arrived at between the parties and the deposition made by the respondent No.2.

In view of the deposition of the respondent no.2 and the non- opposition on behalf of the State and as the FIR in question has apparently emanated from a matrimonial discord which has since been resolved vide CRL.M.C. 2550/2020 page no.2 of 5 the dissolution of marriage between the petitioner no.1 and the respondent no.2, it is considered appropriate to put a quietus to the litigation between the parties qua the FIR in question and for the maintenance of peace and harmony between them in view of the observations in the verdict of the Hon'ble Supreme Court in Gian Singh vs. State of Punjab & Another, (2012) 10 SCC 303, to the effect : -

"58..... No doubt, crimes are acts which have harmful effect on the public and consist in wrongdoing that seriously endangers and threatens the well-being of the society and it is not safe to leave the crime-doer only because he and the victim have settled the dispute amicably or that the victim has been paid compensation, yet certain crimes have been made compoundable in law, with or without the permission of the court. In respect of serious offences like murder, rape, dacoity, etc., or other offences of mental depravity under IPC or offences of moral turpitude under special statutes, like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity, the settlement between the offender and the victim can have no legal sanction at all. However, certain offences which overwhelmingly and predominantly bear civil flavour having arisen out of civil, mercantile, commercial, financial, partnership or such like transactions or the offences arising out of matrimony, particularly relating to dowry, etc. or the family dispute, where the wrong is basically to the victim and the offender and the victim have settled all disputes between them amicably, irrespective of the fact that such offences have not been made compoundable, the High Court may within the framework of its inherent power, quash the criminal proceeding or criminal complaint or FIR if it is satisfied that on the face of such settlement, there is hardly any likelihood of the offender being convicted and by not quashing the criminal proceedings, justice shall be casualty and ends of justice shall be defeated. The above list is CRL.M.C. 2550/2020 page no.3 of 5 illustrative and not exhaustive. Each case will depend on its own facts and no hard-and-fast category can be prescribed."

[Refer to B.S. Joshi, (2003) 4 SCC 675; Nikhil Merchant, (2008) 9 SCC 677 and Manoj Sharma, (2008) 16 SCC 1.]"

and in view of the verdict of the Hon'ble Supreme Court in Jitendra Raghuvanshi & Ors. Vs. Babita Raghuvanshi & Anr. (2013) 4 SCC 58, to the effect : -

"15. In our view, it is the duty of the courts to encourage genuine settlements of matrimonial disputes, particularly, when the same are on considerable increase. Even if the offences are non-compoundable, if they relate to matrimonial disputes and the Court is satisfied that the parties have settled the same amicably and without any pressure, we hold that for the purpose of securing ends of justice, Section 320 of the Code would not be a bar to the exercise of power of quashing of FIR, complaint or the subsequent criminal proceedings.

16. There has been an outburst of matrimonial disputes in recent times. They institution of marriage occupies an important place and it has an important role to play in the society. Therefore, every effort should be made in the interest of the individuals in order to enable them to settle down in life and live peacefully. If the parties ponder over their defaults and terminate their disputes amicably by mutual agreement instead of fighting it out in a court of law, in order to do complete justice in the matrimonial matters, the courts should be less hesitant in exercising their extraordinary jurisdiction. It is trite to state that the power under Section 482 should be exercised sparingly and with circumspection only when the Court is convinced, on the basis of material on record, that allowing the proceedings to continue would be an abuse of process of court or that the ends of justice require that the proceedings ought to be quashed...."

(emphasis supplied), CRL.M.C. 2550/2020 page no.4 of 5 FIR No.478/2016, PS Safdarjung Enclave, under Sections 498A/406/34 of the Indian Penal Code, 1860 and all consequential proceedings emanating therefrom are thus quashed against the petitioner no.1 Mr. Amit Aggarwal and petitioner no.2 Mr. Ashok Kumar Aggarwal, petitioner no.3 Mrs. Bimla Devi, petitioner no.4 Mr. Dheeraj Kumar Aggarwal and petitioner no.5 Ms. Pooja Aggarwal.

The petition is disposed of.

ANU MALHOTRA,

DECEMBER 24, 2020

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CRL.M.C. 2550/2020

IN THE HIGH COURT OF DELHI AT NEW DELHI

AMIT AGGARWAL & ORS. Vs. STATE (NCT) OF DELHI & ANR 24.12.2020 CW-1 SI Imran Khan, PS Safdarjung Enclave.

I have been deputed in the instant case in relation to FIR No.478/2016, PS Safdarjung Enclave, under Sections 498A/406/34 of the Indian Penal Code, 1860.

I identify the petitioner no.1 Mr. Amit Aggarwal and petitioner no.2 Mr. Ashok Kumar Aggarwal, petitioner no.3 Mrs. Bimla Devi, petitioner no.4 Mr. Dheeraj Kumar Aggarwal and petitioner no.5 Ms. Pooja Aggarwal as being the accused arrayed in FIR in question and I identify the respondent no.2 Ms. Swati Kumari as being the complainant thereof.

ANU MALHOTRA, J RO & AC 24.12.2020 IN THE HIGH COURT OF DELHI AT NEW DELHI
AMIT AGGARWAL & ORS. Vs. STATE (NCT) OF DELHI & ANR 24.12.2020 CW-2 Ms. Swati Kumari, d/o Mr. Ramesh Chand Chauhan, aged 31 years, r/o A-95/1, 3rd Floor, Gali No.5, Krishna Nagar, Safdarjung Enclave, Delhi.

On S.A. I do not oppose the prayer made by the petitioners seeking quashing of the FIR No.478/2016, PS Safdarjung Enclave, under Sections 498A/406/34 of the Indian Penal Code, 1860 nor do I want them to be punished in relation thereto in as much as a settlement has since been arrived at between me and the petitioners on 17.08.2019 at the Counselling Cell, Family Court, PHC, New Delhi.

Pursuant to the said settlement, the marriage has since been dissolved vide a decree of divorce through mutual consent under Section 13 B (2) of the Hindu Marriage Act, 1955 vide decree dated 24.01.2020 in HMA 122/2020 of the Court of the Principal Judge, Family Courts, South Saket, Delhi. There is no child born of the wedlock between me and the petitioner no.1.

Pursuant to the said settlement, a total sum of Rs.6 lacs had been agreed to be paid to me by the petitioners of which I have received a sum of Rs.4 lacs previously and the balance sum of Rs.2 lacs has been handed over to me today during the course of the present proceedings by the petitioner vide a demand draft, copy of which is placed on record as Annexure P-7 at page 99 of the petition bearing No.001894 dated 18.12.2020 drawn on the Bank of India in my favour which. There are now no claims of mine left against the petitioners.

I have studied till standard 10th and used to work in a Parlour. I have made my statement after understanding the implications thereof and I have made this statement voluntarily of my own

accord without any duress or coercion from any quarter ANU MALHOTRA, J RO & AC 24.12.2020